BREWERY & DISTILLERY PRODUCTION LEASE

(with Tasting Room)

Hellgate Forge Brewing & Distilling — 1240 South West Temple, Salt Lake City, Utah

between BEEHIVE REALTY TRUST, LLC, as Landlord,

and HELLGATE FORGE BREWING & DISTILLING CO., LLC, as Tenant

This Brewery & Distillery Production Lease (the "Lease") is entered into as of the Effective Date set forth in Article 1, by and between Landlord and Tenant. In consideration of the mutual covenants set forth herein, and intending to be legally bound, Landlord and Tenant agree as follows.

ARTICLE 1. KEY DEFINED TERMS

Defined Term	Entry
Effective Date	March 5, 2026.
Landlord	Beehive Realty Trust, LLC, a Utah limited liability company.
Tenant	Hellgate Forge Brewing & Distilling Co., LLC, a Utah limited liability company.
Building	The single-tenant industrial building located at 1240 South West Temple, Salt Lake City, Utah 84115, consisting of approximately 24,500 rentable square feet (production area, packaging area, bonded barrel rickhouse, tasting room/taproom, lab/QC, office), with one (1) dock door, glycol-cooling infrastructure, three-phase electrical service sized for production, sloped-slab and trench-drain plumbing, and an approximately 1,800 SF exclusive outdoor patio adjacent to the tasting room.
Premises	The entire Building and the Property, as depicted on Exhibit A.
Property	The Building, the land on which the Building is situated (approximately 1.6 acres), and all related parking, drives, sidewalks, landscaping, and the outdoor patio.
Commencement Date	April 1, 2026.
Term	One hundred twenty (120) full calendar months, expiring March 31, 2036 (the "Expiration Date"), unless sooner terminated or extended as provided herein.
Rent Structure	Triple net plus Percentage Rent on tasting-room sales above the Natural Breakpoint (Section 2.4).
Base Rent	As set forth in the schedule in Section 2.2.
Percentage Rent	Five percent (5%) of Tasting Room Gross Sales (as defined in Section 2.4) in excess of the annual Natural Breakpoint, payable monthly in arrears.
Abatement Period	April 1, 2026 through August 31, 2026 (Base Rent only — five (5)

	months), to accommodate Tenant's build-out, equipment installation, TTB Brewer's Notice qualification, TTB Distilled Spirits Plant ("DSP") permit and bonding, and DABS licensing.
Estimated NNN Charges	$3.85 per RSF per year for calendar year 2026 ($7,864.58 per month), reconciled annually under Article 3.
Permitted Use	Production of malt beverages (the "Brewery Operations") under a TTB Brewer's Notice; production of distilled spirits (the "Distillery Operations") under a TTB Distilled Spirits Plant (DSP) permit, with required federal operating and withdrawal bonds; aging of distilled spirits in the bonded rickhouse; packaging, warehousing, and distribution; a tasting room and taproom serving beer, spirits (including limited cocktails to the extent permitted by DABS), and food (subject to DABS food-service requirements); ancillary retail sale of branded merchandise and growler/bottle/can sales to the extent permitted by Law; brewery and distillery tours; and customary related uses. No other use is permitted without Landlord's prior written consent.
Tenant Proportionate Share	100% (single-tenant).
Letter of Credit	$262,500.00 irrevocable standby letter of credit in the form attached as Exhibit H, subject to burn-down under Section 2.7.
Personal Guaranty	Limited Personal Guaranty from Bjorn O. Sandstrom in the form attached as Exhibit V (rolling 12 months of Rent, burning off at month 48 if no Default).
Security Deposit	None (cash); replaced by Letter of Credit and Personal Guaranty.
Tenant Improvement Allowance	$40.00 per RSF ($980,000.00) for the Tenant Build-Out under Exhibit G, payable in arrears against lien-waiver-supported invoices.
Renewal Option	One (1) option to renew for five (5) years at Fair Market Rent, per Article 27.
Brokers	Tenant Broker: Coppervein Brewery Brokerage, LLC. Landlord Broker: Beehive Realty Trust, LLC (in-house).
Tenant Notice Address	Hellgate Forge Brewing & Distilling Co., LLC, Attn: Bjorn O. Sandstrom, Managing Member, 1240 South West Temple, Salt Lake City, UT 84115; courtesy email copy to bsandstrom@hellgateforge.example.
Landlord Notice Address	Beehive Realty Trust, LLC, Attn: Lease Administration, 175 East 400 South, Suite 900, Salt Lake City, UT 84111; courtesy email copy to leases@beehiverealtytrust.example.
Exhibits	Exhibit A (Depiction of Premises); Exhibit B (Surrender Requirements); Exhibit C (Rules and Prohibited Uses); Exhibit D (Tenant Contact Information); Exhibit E (Sign Specifications); Exhibit F (Confirmation of Commencement Date); Exhibit G (Work Letter & Tenant Improvement Allowance); Exhibit H (Form of Letter of Credit); Exhibit I (Utah-

	Specific Provisions); Exhibit K (Environmental & Chemical Disclosure); Exhibit U (Alcohol Licensing — TTB & DABS); Exhibit V (Limited Personal Guaranty). All other exhibits referenced in the Beehive standard form are intentionally omitted as inapplicable.

ARTICLE 2. LEASE OF PREMISES; RENT

2.1 Grant. Landlord leases the Premises to Tenant for the Term, subject to this Lease. This Lease is a "triple-net" lease with Percentage Rent on the Tasting Room, as set forth below.

2.2 Base Rent Schedule.

Period	Rate per RSF	Monthly Base Rent	Annual Base Rent
Apr 1, 2026 – Aug 31, 2026	$15.00 (abated)	$0.00 (abated)	—
Sep 1, 2026 – Mar 31, 2027	$15.00	$30,625.00	$367,500.00
Apr 1, 2027 – Mar 31, 2028	$15.45	$31,543.75	$378,525.00
Apr 1, 2028 – Mar 31, 2029	$15.91	$32,481.25	$389,775.00
Apr 1, 2029 – Mar 31, 2030	$16.39	$33,462.92	$401,555.00
Apr 1, 2030 – Mar 31, 2031	$16.88	$34,463.33	$413,560.00
Apr 1, 2031 – Mar 31, 2032	$17.39	$35,504.58	$426,055.00
Apr 1, 2032 – Mar 31, 2033	$17.91	$36,566.25	$438,795.00
Apr 1, 2033 – Mar 31, 2034	$18.45	$37,668.75	$452,025.00
Apr 1, 2034 – Mar 31, 2035	$19.00	$38,791.67	$465,500.00
Apr 1, 2035 – Mar 31, 2036	$19.57	$39,955.42	$479,465.00

2.3 NNN Charges. Tenant shall pay monthly Estimated NNN Charges concurrently with Base Rent, subject to annual reconciliation under Article 3. Tenant pays all utilities directly under Section 3.3 (recognizing the significant utility load of brewing and distilling operations).

2.4 Percentage Rent — Tasting Room. Tenant shall pay Percentage Rent equal to five percent (5%) of Tasting Room Gross Sales for each Lease Year in excess of the Natural Breakpoint for that Lease Year. The "Natural Breakpoint" is the annual Base Rent then in effect divided by 0.05 (e.g., for Lease Year 1, the Natural Breakpoint is $7,350,000 of Tasting Room sales). "Tasting Room Gross Sales" means the gross dollar amount of all on-Premises and customer-paid sales originating from the Tasting Room (including over-the-bar beer and spirits, food, cocktails, retail merchandise sold from the Tasting Room, growler/bottle/can fills sold from the Tasting Room, and ticketed events held in the Tasting Room or patio), excluding (a) Utah and local sales, alcohol, and other taxes collected from customers; (b) bona fide promotional discounts and complimentary samples consistent with DABS rules; (c) tips and service charges paid out to staff; (d) returns and refunds; and (e) sales of bulk beer or spirits to wholesalers or distributors — those wholesale sales are not subject to Percentage Rent. Percentage Rent is remitted monthly within twenty (20) days after month end (based on cumulative Tasting Room Gross Sales above the cumulative monthly Natural Breakpoint), with annual reconciliation within ninety (90) days after each Lease Year. Tenant shall maintain customary POS, accounting, TTB excise tax, and audit records for at least three (3) years and shall provide Landlord access for audit not more than once per Lease Year by a CPA on a non-contingency basis; if the audit shows an understatement greater than three percent (3%), Tenant shall pay the deficiency plus Landlord's reasonable audit costs up to $7,500.

2.5 Abatement. During the Abatement Period, Base Rent (only) is abated. NNN Charges, utilities, insurance, and taxes remain payable. If a monetary Default results in termination of this Lease or Tenant's right of possession, the unamortized portion of the abated Base Rent shall, to the extent permitted by law, become immediately due as additional damages.

2.6 Required Payments at Execution. Within five (5) business days after the Effective Date, Tenant shall deliver (a) the first monthly installment of Base Rent due after the Abatement Period ($30,625.00); (b) the first monthly installment of Estimated NNN Charges ($7,864.58); (c) the Letter of Credit ($262,500.00) in the form of Exhibit H; (d) the executed Limited Personal Guaranty in the form of Exhibit V; and (e) certificates of insurance compliant with Article 11.

2.7 Letter of Credit; Burn-Down. Tenant shall maintain the Letter of Credit per Exhibit H throughout the Term. Provided no Event of Default has occurred during the prior twelve months and Tenant's TTB Brewer's Notice and DSP Permit remain in good standing, the face amount shall reduce as follows: (a) to $175,000.00 effective on the second anniversary of the Rent Commencement Date; and (b) to $87,500.00 on the fifth anniversary. Upon expiration and full performance, Landlord shall return the Letter of Credit (or unapplied balance) within thirty (30) days.

ARTICLE 3. NNN CHARGES; TAXES; INSURANCE

3.1 Taxes. Tenant shall pay all real property taxes and assessments levied against the Property during the Term, prorated for any partial year. Tenant shall pay the taxing authority directly before delinquency and provide Landlord with paid receipts within thirty (30) days.

3.2 Insurance. Landlord maintains the policies described in Article 10. Tenant reimburses Landlord for the actual premium and commercially reasonable deductibles within thirty (30) days after invoice.

3.3 Utilities. All utilities serving the Property are separately metered or directly billable to Tenant. Tenant shall open accounts and pay all charges directly. Tenant is responsible for any capacity upgrades required by Brewery or Distillery Operations (including the substantial electric, natural gas, water, and sewer load of brewing and distilling) and for any impact, hookup, or demand fees.

3.4 Exterior Maintenance. Tenant's exterior maintenance, snow and ice removal, landscaping, parking lot, patio, dock area, and fence are Tenant's responsibility under Section 15.1. Allocable portions pass through under Article 3 if performed by Landlord at Tenant's request or by virtue of an Event of Default cure.

3.5 Capital Items. Capital improvements pass through only if (a) intended to reduce NNN Charges, (b) required by Laws first enacted or applicable to the Property after the Effective Date, or (c) for energy efficiency, in each case amortized over their useful lives.

3.6 Excluded Charges. NNN Charges exclude leasing commissions; marketing costs; principal and interest on Landlord's debt; depreciation; costs reimbursed by insurance or third parties; costs caused by Landlord's gross negligence or willful misconduct; costs to remediate hazardous materials present before the Effective Date and not caused by Tenant; and Landlord's general corporate overhead.

3.7 Reconciliation; Audit. Within one hundred fifty (150) days after each calendar year, Landlord shall deliver a reconciliation. Underpayments are due within thirty (30) days; overpayments are credited or refunded. Tenant may audit within ninety (90) days after the reconciliation, by a CPA on a non-contingency basis, completed within sixty (60) days. If overcharge exceeds five percent (5%), Landlord reimburses Tenant's audit costs up to $5,000.

3.8 Management Fee. NNN Charges include a Landlord management fee equal to three percent (3%) of Base Rent.

ARTICLE 4. UTILITIES, SEWER PRETREATMENT, AND ENVIRONMENTAL CONTROLS

4.1 Direct Service; Capacity. Tenant pays all utilities directly under Section 3.3. The Building is delivered with 1,600-amp 277/480V three-phase electrical service, a 2-inch water service, a 4-inch natural gas service, an 8-inch sanitary sewer connection, and storm drainage. Tenant is responsible for any further capacity required by its operations.

4.2 Sewer Pretreatment. Tenant's wastewater discharge from brewing and distilling operations (high biological oxygen demand, suspended solids, and pH variability) shall comply with the Salt Lake City Sewer Use Ordinance, the Salt Lake County Pretreatment Program, and any Industrial Wastewater Permit required by either. Tenant shall, at its sole cost, install and maintain pH neutralization, equalization, and any other pretreatment systems required, and shall sample, report, and pay all wastewater surcharges directly. Tenant shall not discharge spent yeast, trub, hot break, low-wines tails, or distillation residues to the sanitary sewer except in pretreated form within permit parameters; bulk spent grain and bulk byproduct shall be removed by Tenant's contracted hauler (typically for livestock feed).

4.3 Carbon Dioxide / Nitrogen / Glycol. Tenant's CO_2 and N_2 systems (bulk tank or cylinder manifold) shall be NFPA 55 compliant, with low-oxygen alarms in any confined production space. Glycol distribution shall use food-grade propylene glycol; spills shall be promptly contained and recovered.

4.4 Steam / Boilers. Tenant's steam boilers (low-pressure boilers customarily used in brewing/distilling) shall be permitted, inspected, and operated in compliance with Utah Labor Commission Boiler and Pressure Vessel rules. Boiler exhaust shall be vented per code.

4.5 Air Quality. Distillery still operations and grain handling may trigger Utah Division of Air Quality requirements (e.g., an Approval Order, Notice of Intent, or Permit-by-Rule for VOC emissions and PM10 from grain handling). Tenant shall obtain and maintain any required air permits.

4.6 Interruption. No interruption of utility service caused by a utility provider or outside Landlord's reasonable control constitutes eviction or relieves Tenant of payment. If interruption caused by Landlord's negligence continues more than three (3) consecutive business days and materially prevents Tenant from operating, Tenant's sole remedy is a proportionate Base Rent abatement for actual loss of use.

ARTICLE 5. USE; ALCOHOL LICENSING; OPERATIONS; SIGNAGE; SECURITY

5.1 Permitted Use; Compliance. Tenant shall use the Premises only for the Permitted Use and shall comply with all Laws applicable to its operations, including: (a) Federal Alcohol Administration Act (27 U.S.C. §§ 201 et seq.) and TTB regulations (27 CFR Parts 1, 6, 7, 19, and 25 in particular); (b) the Utah Alcoholic Beverage Control Act and rules and regulations of the Utah Department of Alcoholic Beverage Services ("DABS"); (c) federal excise tax obligations (TTB Tax and Trade); (d) Salt Lake City zoning, Special Use Permit (if required), business license, building code, fire code, health department, sign code, and noise ordinance; (e) OSHA (including process safety considerations for distillery operations, fall protection in the cellar, and lockout/tagout); and (f) the U.S. Food and Drug Administration's Food Safety Modernization Act (FSMA) to the extent applicable to spent-grain disposition.

5.2 Maintenance of Licenses. Tenant shall obtain, maintain in good standing, and continuously operate under: (i) a TTB Brewer's Notice for the Brewery Operations; (ii) a TTB Distilled Spirits Plant (DSP) permit, with required operating bond, withdrawal bond, basic permit, and qualifying labels (COLA approvals) for the Distillery Operations; (iii) all required DABS licenses, including the manufacturing license appropriate to the products produced, the tasting-room license appropriate to the Tasting Room operations (with food-service requirements as applicable), and any additional permits (e.g., catering, special-event); and (iv) a Salt Lake City business license. Loss, suspension, surrender, or revocation of any of (i), (ii), or (iii) that is not cured or replaced within ninety (90) days is an Event of Default if material to Tenant's operations.

5.3 DABS Compliance; Tied-House. Tenant shall comply with DABS rules regarding food-to-alcohol ratios and food-service requirements, signage, hours, server training, age verification, minor access, free pours, advertising, and the federal and Utah tied-house prohibitions (no payments, gifts, equipment loans, or services to retailers in violation of Section 5 of the FAA Act or DABS rules). Landlord shall not direct, request, or accept any consideration from Tenant that would constitute a tied-house violation.

5.4 Hours; Patio. Production operations are permitted twenty-four hours per day, seven days per week. Tasting Room operating hours are subject to DABS rules and the Tasting Room Operating Hours schedule in Exhibit U. Patio operating hours shall not extend past 10:00 p.m. Sunday through Thursday or 11:00 p.m. Friday and Saturday, except with Landlord's and Salt Lake City's consent.

5.5 Music; Events. Background music is permitted indoors and on the patio at conversational levels. Live amplified music and DJ programming are permitted indoors with Landlord's consent not to be unreasonably withheld; outdoor amplified music is permitted only at events not exceeding ten (10) per Lease Year, ending by 9:00 p.m. Tenant shall comply with Salt Lake City noise ordinance.

5.6 Bonded Premises Boundary. Tenant shall mark, maintain, and physically secure the boundary of the TTB-Bonded DSP area (the "Bonded Premises") in compliance with 27 CFR Part 19, including segregation of bonded distilled spirits from unbonded products, dual-control access protocols, lockable access points, inventory controls, gauging, and dump/yield/loss recordkeeping. Modifications to the Bonded Premises boundary require Landlord's consent (not to be unreasonably withheld) and may require a TTB-approved amendment.

5.7 Operational Restrictions. Tenant shall not (a) violate Laws, the certificate of occupancy, or H-occupancy controls associated with distillery operations; (b) exceed code-permitted Maximum Allowable Quantities of flammable/combustible liquids in any control area; (c) overload floors (live load capacity 250 lb/SF on the production floor, 100 lb/SF in the tasting room/office areas); (d) over-discharge the sewer in violation of Section 4.2; (e) operate equipment that creates vibration audible at the property line beyond customary urban industrial levels; or (f) admit minors to the Bonded Premises or restricted distillery areas except in DABS-permitted tour or training settings.

5.8 Common Area / Curbside; Loading. Deliveries (grain, hops, malt, barrels, kegs, finished product, distribution pickups) shall use the rear loading area; tasting-room front entry is not for deliveries. Bulk-grain receipt by truck shall comply with the Salt Lake City truck route ordinance and Tenant's air permit (PM10).

5.9 Signage. Tenant shall be entitled to (a) one (1) building-mounted sign and (b) one (1) monument sign, in each case per Exhibit E and at Tenant's cost; advertising-content signage is subject to DABS limitations.

5.10 Security. Landlord is not obligated to provide security services. Tenant shall maintain alarm monitoring, cameras over the Tasting Room, bonded barrel rickhouse, dock area, and any controlled-access points; Bonded Premises access logs as required by TTB; and gate/exterior security adequate to discourage product theft. Tenant's access controls shall be sufficient for TTB dual-custody requirements where applicable.

ARTICLE 6. CONDITION AND DELIVERY

6.1 As-Is with Landlord Work. Landlord shall deliver the Premises with the Landlord Work described in Exhibit G complete: (a) shell building including roof, demising elements, slab, exterior; (b) sloped slab and trench drains in the production area; (c) 1,600-amp 277/480V three-phase electrical service to the main electrical room; (d) 2" water and 4" natural gas service; (e) 8" sanitary sewer connection (without pretreatment, which is Tenant's responsibility); (f) restroom rough-ins for one (1) ADA-compliant patron and one (1) staff restroom; (g) storefront glazing and entry doors at the Tasting Room side; (h) dock door and dock area with leveler; and (i) a current Certificate of Occupancy covering the Building shell. Except for the Landlord Work, Tenant accepts the Premises "AS IS, WHERE IS."

6.2 Tenant Build-Out. Tenant shall perform Tenant's Build-Out at its sole cost (subject to the TI Allowance), including the brewhouse and fermentation cellar installation, distillery installation (stills, spirits safe, gauging tank, Class 1 Div 1 / NEC 500 electrical, ventilation and LEL monitoring), bonded barrel rickhouse fit-out, packaging line, glycol/cooling, CO_2/N_2 distribution, sewer pretreatment, tasting room and bar build-out (including DABS-required separations and signage), patio improvements, low-voltage cabling, security, and FF&E.

6.3 Permits and Licensing. Tenant shall obtain all building, fire, mechanical, electrical, plumbing, health, alcohol, air-quality, and pretreatment permits required for Tenant's Build-Out and operations. TTB qualification (Brewer's Notice and DSP permit) and DABS licensing shall be Tenant's responsibility. Landlord shall reasonably cooperate (e.g., providing diagrams of the Bonded Premises boundary, signing as fee owner where required) without cost or liability.

6.4 Early Access. Beginning March 9, 2026, Tenant may enter the Premises solely to begin Tenant's Build-Out, provided Tenant has delivered insurance certificates and coordinates with Landlord. Early access does not advance the Commencement Date.

6.5 Confirmation. Within ten (10) days after Landlord's delivery, the parties shall execute a Confirmation of Commencement Date in the form of Exhibit F.

6.6 Outside Date. If Landlord fails to deliver the Premises in the required condition by May 15, 2026 for reasons other than Tenant Delay or Force Majeure, Tenant may terminate this Lease by written notice within thirty (30) days after the outside date, and Landlord shall refund all sums prepaid by Tenant.

ARTICLE 7. SUBORDINATION; SNDA; ESTOPPEL

7.1 Subordination. Subject to receipt of a commercially reasonable SNDA, this Lease is subordinate to all mortgages, deeds of trust, and ground leases now or hereafter affecting the Property.

7.2 Estoppel. Tenant shall deliver estoppel certificates within ten (10) business days after request.

7.3 TTB Estoppel. To the extent reasonably required by Tenant's lender, surety, or wholesale-credit counterparty, Landlord shall provide a written acknowledgment confirming Tenant's right to possession and the Bonded Premises boundary; Landlord's acknowledgment is not a guaranty of Tenant's federal qualification.

ARTICLE 8. ASSIGNMENT AND SUBLETTING

8.1 Consent. Tenant shall not transfer this Lease, sublet any portion of the Premises, mortgage or pledge its leasehold interest, or permit any transfer by operation of law, merger, change of control, or sale of substantially all assets, without Landlord's prior written consent, not to be unreasonably withheld, except for Permitted Transfers under Section 8.4.

8.2 Review Criteria. Landlord may consider the transferee's business reputation, operational experience in brewing/distilling and in alcohol-licensed hospitality, TTB and DABS compliance history, financial condition, food-safety and pretreatment experience, and any lender or DABS requirements.

8.3 Excess Consideration. After deducting reasonable and customary transfer costs (including unamortized Tenant Improvements), fifty percent (50%) of any excess transfer consideration is payable to Landlord; this Section 8.3 does not apply to Permitted Transfers.

8.4 Permitted Transfers. Tenant may transfer to an Affiliate or to a surviving entity in a merger or sale of substantially all assets without consent, upon fifteen (15) days' notice, provided (a) the use, brand identity, and DABS/TTB compliance posture are maintained, (b) the transferee's tangible net worth is not less than $10,000,000, and (c) Tenant and Guarantor (subject to burn-off under Exhibit V) remain liable. A change in DABS licensee identity requires DABS approval and is not deemed effective until issued; the parties shall reasonably cooperate to accomplish the necessary licensee transfer.

8.5 Tied-House Compliance on Transfer. Any transfer or transaction involving the leasehold shall comply with federal and Utah tied-house prohibitions; in no event shall Landlord acquire an interest in Tenant's alcohol licenses or revenue beyond Base Rent, NNN Charges, and Percentage Rent set forth herein.

8.6 No Release. No transfer releases Tenant or Guarantor unless Landlord expressly agrees in writing.

ARTICLE 9. ENVIRONMENTAL

9.1 Restriction. Tenant shall not generate, store, use, treat, transport, release, or dispose of Hazardous Materials at the Property except (a) de minimis office and cleaning supplies; (b) sanitation, brewery, and distillery process chemicals customarily used (cleaning caustics, peracetic acid, iodophors, brewery sanitizers, food-grade lubricants, propylene glycol for cooling) used per Laws and Tenant's safety program; (c) CO_2 and N_2 per Section 4.3; (d) distilled spirits (a flammable liquid for code purposes) in code-permitted MAQs within the Bonded Premises and rickhouse, with appropriate engineering controls; (e) low-pressure steam systems per Section 4.4; and (f) ammonia or other refrigerants only if Tenant installs supplemental refrigeration (in which case the refrigerant package shall be code-compliant and disclosed to Landlord).

9.2 Compliance; Notice. Tenant shall comply with all Environmental Laws and promptly notify Landlord of any spill, release, regulatory inspection, citation, or notice of violation.

9.3 Remediation. Tenant shall, at its sole cost, remediate any release caused, contributed to, or exacerbated by Tenant.

9.4 Spent Grain and Process Byproducts. Bulk spent grain and brewing byproducts shall be removed under a hauler agreement (commonly for livestock feed), with FSMA Animal Food Rule recordkeeping. No on-site disposal in trash compactors or sewer except in pretreated form within permit.

9.5 Surrender Closure. Not less than one hundred eighty (180) days before the Expiration Date, Tenant shall deliver to Landlord an Alcohol Production Decommissioning and Closure Plan describing draw-down of finished and in-process inventory, withdrawal-bond closure for any bonded spirits leaving the Bonded Premises (including any transfer-in-bond to a successor DSP), TTB termination of Brewer's Notice and DSP permit (or transfer per a successor), DABS license disposition, pretreatment system disposition, and equipment disposition. Tenant shall execute the plan at its cost.

9.6 Pollution Insurance. Tenant shall maintain Pollution Legal Liability insurance with limits of not less than $2,000,000 per occurrence and $4,000,000 aggregate, naming Landlord and its lender as additional insureds, for the Term and for three (3) years after surrender.

ARTICLE 10. LANDLORD INSURANCE

Landlord shall maintain commercial property insurance for the Building (special form, replacement cost), commercial general liability, rental value, and such other insurance as Landlord or its lender deems appropriate. Cost is reimbursable under Article 3. Landlord's property insurance does not cover Tenant's inventory (including in-process beer, finished beer, bonded spirits, barrels, and finished packaged product), production equipment, FF&E, or leasehold improvements.

ARTICLE 11. TENANT INSURANCE

11.1 Required Policies.

Policy	Minimum Limit / Notes
Commercial General Liability	$2,000,000 per occurrence / $5,000,000 aggregate.
Liquor Liability / Dram Shop	$2,000,000 per occurrence / $5,000,000 aggregate, dedicated and non-eroding by other claims.
Products / Completed Operations	Included within CGL limits, with brewery and distillery products specifically covered.
Commercial Property (Special Form, replacement cost)	Full replacement cost of Tenant's production equipment (brewhouse, cellar tanks, packaging line, stills, spirits safe), in-process beer/spirits, finished goods, barrels (including aging spirits with appropriate valuation and tax-paid status considerations), tasting room FF&E, and leasehold improvements.
Business Interruption / Extra Expense	Twelve (12) months of fixed and variable expenses, including Base Rent, NNN Charges, and projected Percentage Rent.
Spoilage / Aging Goods	Coverage appropriate for tank contents and aging barrel

	inventory at the rickhouse, valued consistent with TTB excise-tax status.
Equipment Breakdown	Replacement cost for the brewhouse, cellar, stills, and refrigeration / glycol systems.
Workers' Compensation / Employer's Liability	Statutory; EL $1,000,000.
Commercial Auto Liability	$1,000,000 (any auto), if any vehicle is used.
Pollution Legal Liability	Per Section 9.6.
Cyber Liability	$1,000,000.
Umbrella / Excess Liability	$10,000,000 each occurrence/aggregate over CGL, Liquor, Auto, EL, and Pollution.

11.2 Additional Insureds. Landlord and its lender are named as additional insureds on CGL, Liquor, Auto, Pollution, and Umbrella policies on a primary and noncontributory basis.

11.3 Certificates; Failure to Insure. Tenant shall deliver certificates of insurance and required endorsements before the Commencement Date and at least thirty (30) days before each policy expiration. If Tenant fails to maintain required insurance, Landlord may procure it and charge Tenant the cost plus a ten percent (10%) administrative fee.

ARTICLE 12. WAIVER OF SUBROGATION

Landlord and Tenant waive claims against each other for losses to the extent covered, or required to be covered, by the property insurance policies maintained or required under this Lease.

ARTICLE 13. ALTERATIONS

13.1 Consent. Tenant shall not make alterations without Landlord's prior written consent, not to be unreasonably withheld for interior non-structural alterations.

13.2 Escalated Alterations. Heightened review applies to: roof penetrations; slab cuts (including any affecting the trench drains or sloped slab); modifications to the Bonded Premises boundary; sprinkler reconfiguration; ammonia or other supplemental refrigeration; battery rooms; significant electrical upgrades; expansion of distillery still capacity; addition of fermentation tankage beyond designed cellar capacity; and changes to dust-collection or VOC controls.

13.3 Minor Alterations. Tenant may perform non-structural interior alterations costing less than $40,000 per project and $150,000 in the aggregate per Lease Year without Landlord's consent, with at least ten (10) business days' prior notice.

13.4 Removal at Surrender. At consent time, Landlord designates removal. The brewhouse, cellar tanks, stills, spirits safe, packaging line, glycol/cooling components, CO2/N2 systems, tasting-room bar and tap wall, walk-in coolers, FF&E, low-voltage cabling, and patio improvements are Tenant property and shall be removed at surrender, with restoration of slab penetrations, plumbing, and electrical to safe abandoned condition.

ARTICLE 14. PROPERTY; TRADE FIXTURES

Tenant's brewhouse, fermentation tankage, stills, spirits safe, gauging tanks, packaging equipment, walk-in coolers, glycol skids, CO2/N2 manifolds, barrels, tap wall, bar, FF&E, low-voltage cabling, and personal property remain Tenant's property and shall be removed at surrender, subject to decommissioning under Section 9.5 and Exhibit B.

ARTICLE 15. REPAIRS AND MAINTENANCE

15.1 Tenant Obligations. Tenant shall maintain in good condition and repair: (a) the entire interior of the Premises and patio; (b) the brewhouse, cellar, distillery, packaging line, refrigeration, glycol systems, CO2/N2, steam boilers, and any installed pretreatment systems; (c) all HVAC, plumbing, electrical, and life-safety systems serving the Premises (including the Class 1 Div 1 / NEC 500 systems in the distillery); (d) dock equipment and the drive-in door; (e) the fire-suppression and fire-alarm systems; (f) interior signage; (g) the parking lot and patio surface; (h) landscaping, irrigation, snow and ice removal; and (i) the storefront, glazing, and tasting-room finishes.

15.2 Landlord Obligations. Landlord shall maintain (a) the structural elements of the Building, including foundation and load-bearing walls; (b) the roof structure and roof membrane; and (c) the exterior load-bearing walls. Costs pass through under Article 3 to the extent ordinary upkeep and not capital, except as expressly stated in Section 3.5.

15.3 Service Contracts. Tenant shall maintain commercially reasonable preventative-maintenance contracts on (a) brewhouse/cellar/distillery (annual inspection minimum, plus calibration of mass flow meters and gauging equipment); (b) refrigeration/glycol (semi-annual); (c) steam boilers (annual Utah Labor Commission inspection); (d) fire-suppression and fire-alarm (semi-annual); (e) Class 1 Div 1 / NEC 500 electrical and LEL monitor in the distillery (annual); (f) hood cleaning (if a Type I hood is installed for the tasting-room kitchen) on a schedule consistent with food code; (g) pretreatment system testing; and (h) dock equipment (annual). Tenant shall deliver inspection reports to Landlord on the schedule in Exhibit U.

15.4 Tenant-Caused Damage. Tenant is responsible for damage caused by negligence, misuse, or willful misconduct, except as barred by Article 12.

ARTICLE 16. ACCESS

Landlord and its representatives may access the Premises at reasonable times on at least twenty-four (24) hours' prior notice (except in emergencies). Access to the Bonded Premises shall be coordinated with Tenant's on-duty distiller and shall comply with Tenant's TTB-required dual-custody and entry-log protocols.

ARTICLE 17. INDEMNIFICATION; LIMITATION OF LIABILITY

17.1 Tenant Indemnity. Tenant shall indemnify, defend, and hold harmless Landlord and its affiliates, members, managers, officers, employees, agents, and lenders from losses arising out of (a) Tenant's Default; (b) the negligence or willful misconduct of Tenant or any Tenant party; (c) Tenant's use, occupancy, or operations at the Premises (including brewery and distillery operations, alcohol service, and tasting-room activities); (d) any Hazardous Materials caused by Tenant; (e) any violation of Laws (including TTB, DABS, food code, OSHA, FDA

FSMA, air quality, and pretreatment) by Tenant or any Tenant party; and (f) any product-liability or dram-shop claim arising from Tenant's alcohol or food products or service.

17.2 Landlord Indemnity. Landlord shall indemnify Tenant from losses directly caused by Landlord's gross negligence or willful misconduct, subject to Section 17.3.

17.3 Limitation. Tenant shall look solely to Landlord's interest in the Property. No member, manager, officer, employee, or agent of Landlord has personal liability. Except for Tenant's holdover, environmental, and alcohol-licensing obligations, neither party is liable for consequential, punitive, or special damages.

ARTICLE 18. FORCE MAJEURE

Except for payment of Rent, maintenance of insurance and Letter of Credit, surrender, environmental obligations, and option/notice deadlines, performance is extended for delays caused by events beyond reasonable control, including labor disputes, casualty, war, terrorism, governmental action, utility failures, shortages, public-health emergencies, and permit delays despite diligent pursuit.

ARTICLE 19. CASUALTY

If restoration cannot reasonably be completed within two hundred forty (240) days (recognizing the lead time required to restore a brewery and bonded distillery), either party may terminate on thirty (30) days' notice. Otherwise, Landlord shall restore the Building shell and Tenant shall restore the interior, production equipment, and Tenant property. Base Rent abates proportionately during untenantability. If casualty occurs in the last twenty-four (24) months of the Term, either party may terminate. The parties acknowledge that any aging-spirit inventory stored at the rickhouse should be addressed through Tenant's insurance and TTB transfer-in-bond procedures, not through this Lease.

ARTICLE 20. CONDEMNATION

If all or a material portion of the Premises is taken, this Lease terminates as to the taken portion with equitable rent adjustment. Landlord receives the award for real property; Tenant may pursue a separate award for moving costs, trade fixtures, production equipment, bonded inventory relocation, and business damages to the extent permitted by law and not reducing Landlord's award.

ARTICLE 21. SURRENDER AND HOLDOVER

21.1 Surrender. Tenant shall surrender per Exhibit B, having executed the Alcohol Production Decommissioning and Closure Plan, removed Tenant property, repaired damage, restored slab and wall penetrations, terminated utility accounts, surrendered keys and access credentials, and delivered TTB and DABS closure documentation.

21.2 Holdover. Holdover rent equals one hundred fifty percent (150%) of the immediately preceding Rent for the first thirty (30) days and two hundred percent (200%) thereafter, plus all damages and costs. Tenant's TTB qualifications and DABS license expire under federal/state procedures and not by virtue of this Lease; Tenant shall not continue alcohol production or sales during any holdover except as expressly permitted by Landlord in writing and by Tenant's active licenses.

ARTICLE 22. EVENTS OF DEFAULT

Events of Default include: (a) Rent unpaid five (5) days after written notice past due; (b) failure to maintain insurance, the Letter of Credit, or the Guaranty; (c) loss, surrender, suspension, or revocation of TTB Brewer's Notice, DSP permit, or material DABS license (subject to the ninety-day cure in Section 5.2); (d) abandonment for more than fifteen (15) consecutive days following commencement of production operations; (e) repeated failure (more than twice in any twelve-month period) to maintain pretreatment, fire-suppression, or boiler-inspection compliance per Sections 4.2 and 15.3; (f) unauthorized transfer in violation of Article 8; (g) liens not released within thirty (30) days; (h) failure to deliver required documents; (i) insolvency or bankruptcy not dismissed within sixty (60) days; (j) material misrepresentation; (k) any material breach of TTB Bonded Premises segregation, recordkeeping, or bond requirements; and (l) failure to perform any other covenant within thirty (30) days after notice (subject to extension for diligent cure).

ARTICLE 23. REMEDIES

23.1 Remedies. Upon an Event of Default, Landlord may exercise all rights and remedies at law or in equity, including termination, reletting, deficiency damages, drawing on the Letter of Credit, drawing on the Guaranty, cure at Tenant's expense, and injunctive relief, subject to commercially reasonable mitigation as required by Utah law.

23.2 Cumulative; No Waiver. Remedies are cumulative.

23.3 Attorneys' Fees. Prevailing party recovers reasonable attorneys' fees and costs.

ARTICLE 24. BROKERS

Landlord and Tenant represent they have dealt with no brokers except those named in Article 1. Landlord shall pay Tenant Broker per a separate commission agreement.

ARTICLE 25. MISCELLANEOUS

25.1 Governing Law; Venue. Utah law governs. Venue is Salt Lake County, Utah.

25.2 Notices. In writing, by personal delivery, certified mail (return receipt requested), or overnight courier, to Article 1 addresses.

25.3 Entire Agreement; Amendment. Entire agreement; amendments require writing signed by both parties.

25.4 Authority. Each signatory is authorized to bind its party.

25.5 Counterparts; Electronic Signatures. Permitted.

25.6 Severability. Unenforceable provisions are severable.

25.7 Waiver of Jury Trial. Mutual waiver to the maximum extent permitted by law.

25.8 Time of the Essence. Time is of the essence.

25.9 OFAC. Each party is not on any U.S. government prohibited-party list.

25.10 Tied-House Compliance. Nothing in this Lease, including the Percentage Rent provision in Section 2.4, is intended to grant Landlord any "interest in" Tenant's alcohol business or licenses within the meaning of Section 5 of the Federal Alcohol Administration Act or DABS tied-house rules. Percentage Rent is in respect of real estate occupancy economics keyed to the Tasting Room's revenue from on-Premises consumption and retail sales, in a structure customary for restaurant/tasting-room leases. If any provision of this Lease is determined by TTB or DABS to constitute a prohibited interest, the parties shall promptly modify such provision in good faith to comply, preserving the parties' economic deal to the maximum extent practicable.

25.11 Survival. Indemnity, environmental, TTB/DABS closure, surrender, holdover, attorneys' fees, Percentage Rent reconciliation, and NNN reconciliation obligations survive expiration or termination.

25.12 Financial Statements. Tenant shall deliver reviewed annual financial statements within one hundred twenty (120) days after fiscal year end, including a Tasting Room sales summary, subject to confidentiality.

25.13 Recording. Neither party shall record this Lease, but the parties may record a mutually approved short-form memorandum.

ARTICLE 26. SIGNATURES

IN WITNESS WHEREOF, Landlord and Tenant have executed this Lease as of the Effective Date.

LANDLORD:

BEEHIVE REALTY TRUST, LLC, a Utah limited liability company

By: ____

Name: Cordelia P. Whitcombe

Title: Managing Director, Leasing

TENANT:

HELLGATE FORGE BREWING & DISTILLING CO., LLC, a Utah limited liability company

By: ____

Name: Bjorn O. Sandstrom

Title: Managing Member

GUARANTOR:

BJORN O. SANDSTROM, an individual

____

ARTICLE 27. RENEWAL OPTION

27.1 Grant. Provided no uncured Event of Default exists and Tenant is operating consistent with the Permitted Use, Tenant has one (1) option to renew the Term for five (5) years at Fair Market Rent.

27.2 Notice. Tenant shall exercise by written notice delivered not earlier than fifteen (15) months and not later than twelve (12) months before the Expiration Date. Time is of the essence.

27.3 FMR. Fair Market Rent shall reflect comparable single-tenant brewery/distillery production-with-tasting-room space in the Wasatch Front, with floor drains and three-phase production capacity, taking into account length of term, escalations, tenant credit, and concessions actually offered in the market for renewals. The parties shall negotiate for thirty (30) days; failing agreement, each shall select a qualified MAI appraiser, the two shall jointly select a third, and FMR shall be determined by majority vote within sixty (60) days.

EXHIBIT A

Depiction of Premises

The Premises consist of the entire Building and the Property at 1240 South West Temple, Salt Lake City, Utah 84115, as depicted below. The TTB-Bonded DSP area and bonded barrel rickhouse are shown in red and are governed by Exhibit U. The Tasting Room and patio are shown in yellow. The depiction is illustrative; in the event of a measurable discrepancy, the RSF in Article 1 controls.

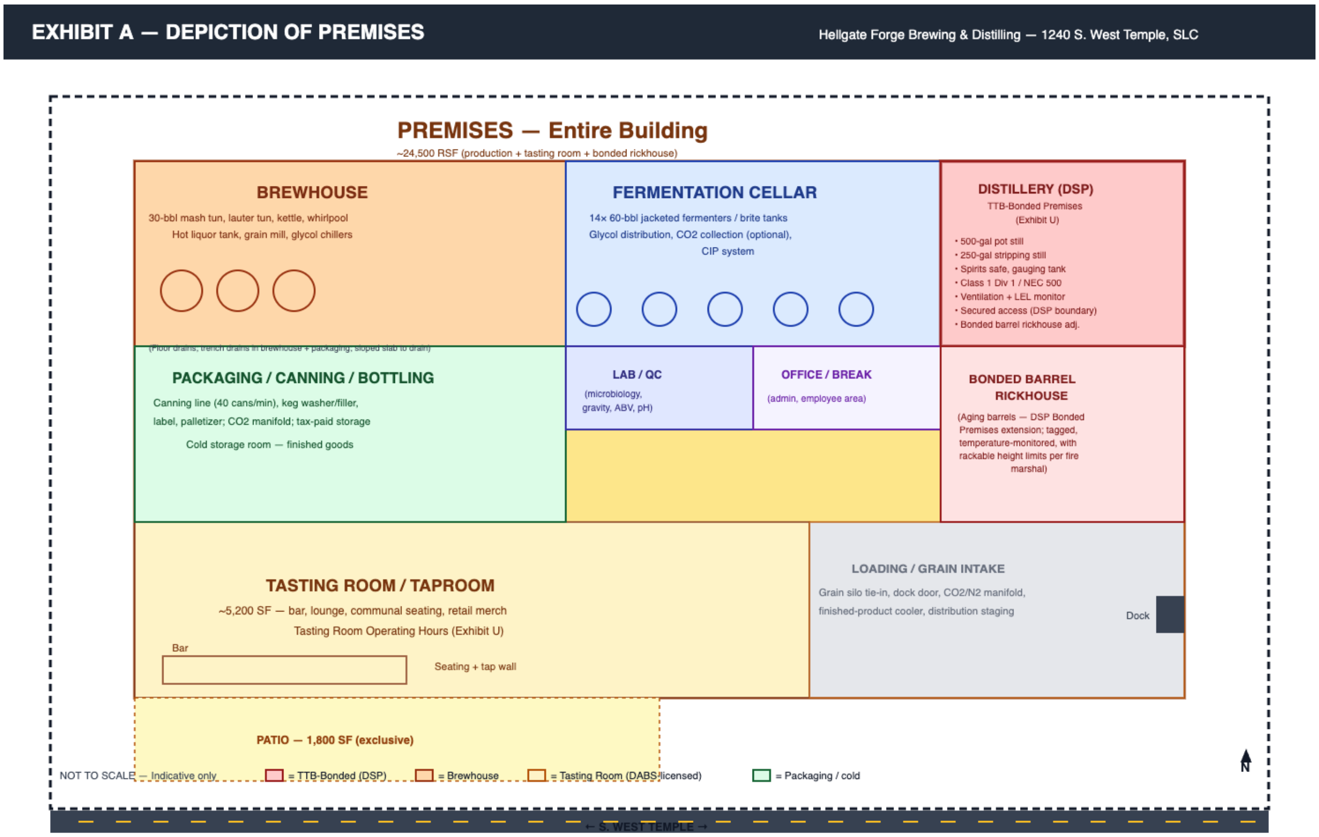

EXHIBIT B

Surrender Requirements

On or before the Expiration Date, Tenant shall, at its sole cost:

1. Execute the Alcohol Production Decommissioning and Closure Plan under Section 9.5, including (a) draw-down of in-process and finished beer; (b) for bonded spirits, transfer-in-bond to a successor DSP or destruction in TTB-supervised manner; (c) closure of the DSP permit, Brewer's Notice, and material DABS licenses (or transfer to a successor on Tenant's sale, as applicable); (d) closure of any air, pretreatment, and other operational permits; and (e) delivery to Landlord of TTB closure documentation, DABS surrender letters, and SLC/SLCo pretreatment closure correspondence.

2. Remove all brewery, cellar, distillery, packaging, refrigeration, glycol, CO2/N2, steam, pretreatment, dock, bar, and tasting-room equipment, including stills, spirits safe, gauging tanks, brewhouse vessels, tanks, walk-in coolers, kegs, barrels, and FF&E.

3. Drain, clean, and decommission the pretreatment system; deliver final sampling and pretreatment compliance records.

4. Decommission boilers and pressure vessels per Utah Labor Commission inspection requirements; deliver closure documentation.

5. Recover refrigerants from any refrigeration package installed by Tenant; deliver refrigerant-recovery records.

6. Patch and seal all slab cores and trench-drain modifications; deliver smooth, level, sealed slabs in the production area.

7. Service and repair dock equipment; deliver licensed-contractor sign-off.

8. Deliver current annual fire-suppression and fire-alarm inspection certificates and a current Class 1 Div 1 electrical inspection report for the former distillery area.

9. Clean and re-stripe the parking lot, patio, and dock area.

10. Remove all signage and repair related damage.

11. Pressure-wash and sanitize the production floor; sweep, scrub, and clean the Tasting Room; deliver the Premises broom-clean.

12. Surrender keys, fobs, gate codes, alarm credentials, fire-panel codes, BMS credentials, TTB Bonded Premises access logs, and POS credentials.

EXHIBIT C

Rules and Prohibited Uses

Rules.

1. Deliveries (grain, hops, malt, barrels, kegs, finished product) use the rear loading area; tasting-room front entry is not for deliveries.

2. Trash, recycling, spent grain, and pretreated wastewater handling shall be in compliance with Sections 4.2 and 9.4. Spent grain shall not be staged in common-area dumpsters.

3. Smoking, vaping, and cannabis use are prohibited inside the Building, on the patio, and within 25 feet of any entry, dock door, or fuel/CO2/flammable storage.

4. Minors are not permitted in the Bonded Premises or production area except in DABS-permitted tour settings with appropriate supervision.

5. Tasting Room conduct shall comply with DABS server training, age verification, free-pour and signage rules.

6. Music and amplified sound on the patio shall not be audible at the property line during quiet hours.

Prohibited Uses.

A. Storage or use of explosives, fireworks, or ammunition.

B. Operation of a restaurant primarily focused on full-menu food service rather than a tasting room with food (Tenant's tasting-room food service shall comply with DABS food-to-alcohol ratios applicable to its license class).

C. Operation of a public taproom that does not also include active on-Premises production (the brewery/distillery operations are integral to the Permitted Use).

D. Industrial laundry, dry cleaning.

E. Cannabis cultivation, processing, manufacturing, or retail; on-site cannabis consumption.

EXHIBIT D

Tenant Contact Information

Tenant shall maintain the following primary contact for all matters under this Lease, and shall provide written notice of any change within ten (10) business days.

Field	Information
Name	Bjorn O. Sandstrom
Title	Managing Member
Business Phone	(801) 555-0815
Mobile / After-Hours Phone	(801) 555-0842
Email	bsandstrom@hellgateforge.example
Mailing Address	Hellgate Forge Brewing & Distilling Co., LLC, 1240 South West Temple, Salt Lake City, UT 84115
24/7 Production / Emergency Line	(801) 555-0808
Distiller (on duty)	Routed via 24/7 line; dual-custody acknowledgment in DSP records

EXHIBIT E

Sign Specifications

Building Sign. One (1) building-mounted sign at the Tasting Room façade, dimensions per Salt Lake City sign code and Landlord's aesthetic review.

Monument Sign. One (1) monument sign at West Temple, fabricated by Tenant's sign vendor at Tenant's cost, with content reviewed by Landlord and subject to DABS advertising limits.

Window / Patio Signage. Window graphics not to exceed 25% of glazed area; one (1) A-frame at the patio entry during operating hours, removed nightly.

TTB / DABS Required Signage. Tenant shall install all federally and Utah-required signage (e.g., underage warnings, posted licenses, occupancy load, DSP boundary markings) in compliance with Laws.

Removal. Tenant shall remove signage at the Expiration Date and repair damage.

EXHIBIT F

Confirmation of Commencement Date

Reference is made to that certain Brewery & Distillery Production Lease dated March 5, 2026 (the "Lease") between Beehive Realty Trust, LLC, as Landlord, and Hellgate Forge Brewing & Distilling Co., LLC, as Tenant. Landlord and Tenant confirm:

Item	Confirmed
Commencement Date	_______________, 2026
Rent Commencement Date	September 1, 2026
Expiration Date	March 31, 2036
Premises RSF	24,500
TTB Brewer's Notice in good standing	☐ Yes ☐ Pending — Tenant shall notify Landlord upon issuance
TTB DSP Permit and Bonds in place	☐ Yes ☐ Pending — Tenant shall notify Landlord upon issuance
DABS Manufacturer & Tasting Room licenses	☐ Yes ☐ Pending — Tenant shall notify Landlord upon issuance
Landlord Delivery Complete	☐ Yes ☐ Subject to attached punch list ☐ No

EXHIBIT G

Work Letter & Tenant Improvement Allowance

1. **Landlord Work.** Landlord shall deliver the Premises with (a) shell building with roof, exterior, structure, and demising; (b) sloped slab and trench drains in the production area; (c) 1,600-amp 277/480V three-phase electrical service to a main electrical room; (d) 2" water service and 4" natural gas service; (e) 8" sanitary sewer connection (without pretreatment); (f) restroom rough-ins for two (2) restrooms; (g) Tasting Room storefront glazing and entry doors; (h) dock door with leveler and dock area in operable condition; and (i) a current Certificate of Occupancy for the shell.

2. **Tenant Build-Out.** Tenant shall install: brewhouse, fermentation cellar, distillery (including Class 1 Div 1 / NEC 500 electrical, ventilation, and LEL monitoring), bonded barrel rickhouse fit-out (with TTB-compliant access controls and recordkeeping), packaging line, refrigeration/glycol/CO2/N2/steam systems, sewer pretreatment (pH neutralization and equalization at minimum), tasting-room build-out (bar, tap wall, lounge, retail, DABS-compliant separations and signage, kitchen and Type I hood if installed), patio improvements, low-voltage cabling, security, and FF&E.

3. **TI Allowance.** Landlord shall provide a one-time TI Allowance of $40.00 per RSF ($980,000.00) payable in arrears in up to four (4) draws against (a) paid invoices, (b) conditional lien waivers (unconditional for the final draw), (c) photographs of completed work, and (d) the General Contractor's sworn affidavit. The Allowance may be applied to qualifying installed improvements (including pretreatment, Class 1 Div 1 electrical, fire-suppression upgrades, kitchen exhaust, tasting-room finishes, and built-in millwork), and to soft costs (permitting, architectural/MEP, alcohol-licensing consultant) up to twenty percent (20%) of the Allowance. The Allowance may not be applied to movable production equipment (brewhouse vessels, stills, tanks) except for cost of installation. Unused Allowance is forfeited eighteen (18) months after the Commencement Date.

4. **Plans and Approvals.** Tenant shall submit plans, specifications, contractor list, and (where required) TTB diagrams of the Bonded Premises boundary to Landlord for approval (not to be unreasonably withheld). Landlord's review fee is waived.

5. **Outside Date.** Per Section 6.6.

EXHIBIT H

Form of Letter of Credit

Issuer. A federally insured bank with a long-term unsecured credit rating of not less than A3/A- (Moody's/S&P), with an office in Salt Lake County, Utah, or otherwise approved by Landlord.

Form. Irrevocable standby letter of credit, automatically renewable through sixty (60) days after the Expiration Date with at least sixty (60) days' prior written notice of nonrenewal, transferable to a successor landlord (transfer fees paid by Tenant), and available by sight draft accompanied only by a written statement from Landlord that "an Event of Default has occurred and is continuing under the Lease, or the Letter of Credit has not been renewed or replaced as required by the Lease."

Amount and Burn-Down. Initial amount: $262,500.00. Burn-down per Section 2.7.

Draw Events. (a) an Event of Default; (b) nonrenewal or impairment within thirty (30) days of expiry without an acceptable replacement; (c) downgrade of the issuer below the minimum rating without replacement within thirty (30) days; or (d) a bankruptcy filing by Tenant or the issuer.

EXHIBIT I

Utah-Specific Provisions

I.1 Governing Law. Utah law governs.

I.2 Mechanics' Liens. Liens released or bonded within thirty (30) days under Utah Code §38-1a et seq.; Landlord may post non-responsibility notices.

I.3 DABS / Liquor. Tenant's alcohol production and Tasting Room operations are subject to the policies and rules of DABS, including licensee-class-specific food-service and dining/alcohol ratios, hours, signage, server training, minor access, and advertising restrictions. Tenant acknowledges Utah's comprehensive regulatory regime applicable to manufacturers, breweries, distilleries, and tasting rooms and shall not commence alcohol activities until all required DABS approvals are issued.

I.4 Boiler / Pressure Vessel. Tenant shall comply with the Utah Boiler and Pressure Vessel Rules administered by the Utah Labor Commission.

I.5 Air Quality. Tenant shall comply with the Utah Division of Air Quality requirements as applicable to distillery still operations, grain handling, and any boiler exhaust, including obtaining a Permit-by-Rule, Approval Order, or air operating permit if Tenant's emissions trigger applicability thresholds.

I.6 Wastewater. Tenant shall comply with the Salt Lake City Sewer Use Ordinance and Salt Lake County Pretreatment Program and shall obtain any Industrial Wastewater Permit required.

I.7 Sales / Excise Taxes. Tenant shall collect and remit all Utah and local sales taxes, restaurant taxes (if applicable), and alcohol-specific markups/taxes as required by Utah law and DABS rules. Tenant pays federal excise tax on beer and spirits directly to TTB.

I.8 Mechanics' Liens / Construction Registry. Tenant shall comply with the State Construction Registry for any work performed by Tenant.

I.9 Broker Disclosure; ADA. Tenant Broker represents Tenant; Landlord Broker represents Landlord. Tenant is responsible for ADA accessibility in the interior of the Premises (Tasting Room front-of-house must be ADA-compliant).

I.10 Indoor Clean Air Act. Tenant's Tasting Room operations shall comply with the Utah Indoor Clean Air Act, including required smoking-restriction signage.

EXHIBIT K

Environmental & Chemical Disclosure

Tenant has completed the following initial disclosure under Article 9, updated annually and within thirty (30) days of any material change.

Regulatory Status.

Program	Tenant Status
EPA Hazardous Waste Generator ID	VSQG/SQG depending on cleaning chemical use; UT EPA ID as required.
SARA Title III §312 (Tier II) reporting	Anticipated for CO_2 bulk tank, propylene glycol bulk, and bulk distilled spirits inventory.
UPDES Stormwater	Not anticipated for indoor production with controlled outdoor areas.
Salt Lake County / Salt Lake City Pretreatment Permit	Yes — required for brewery/distillery discharge.
Utah Division of Air Quality	Permit-by-Rule, NOI, or Approval Order to be obtained for still operations and grain dust as required.
Utah Labor Commission Boiler Permit	Yes — annual inspection.
FDA FSMA (Animal Food Rule)	Spent grain disposition complies with the Animal Food Preventive Controls Rule (recordkeeping; hauler agreement for livestock feed).

Materials Inventory (initial estimates).

Material	Approx. Inventory	Storage	Compliance / Permits
Distilled spirits (in-bond and tax-paid)	Variable — up to several thousand proof gallons	Bonded rickhouse and DSP	TTB; fire code (Class IB flammable for high-proof)
Beer (in-process and finished)	Up to cellar capacity (~840 bbl)	Fermenters and brite tanks	TTB Brewer's Notice
Grain, malt, hops	As needed	Dry storage; silo tie-in	FSMA; fire code (dust)
Cleaning caustics (NaOH, etc.)	~100 gal	Labeled, contained, in CIP system	OSHA HazCom
Acid (phosphoric, peracetic)	~60 gal	Labeled drums and totes	OSHA HazCom
CO_2 (bulk + cylinders)	3,000 lb bulk + cylinders	Bulk tank with overpressure relief; cylinders chained	NFPA 55; Tier II
N_2 (cylinders)	As needed	Vented cylinder cabinet	NFPA 55

Propylene glycol (food-grade)	~300 gal in cooling loop	Closed loop	SDS
Diesel (if generator installed)	TBD	AST if any	NFPA 30 if applicable
Sanitation/lubricant products	As needed	Labeled containers	OSHA HazCom

Acknowledgment. Tenant represents that, giving effect to the permits, controls, and recordkeeping described above, its operations as of the Effective Date will be conducted in compliance with applicable Environmental Laws.

EXHIBIT U

Alcohol Licensing — TTB & DABS

U.1 TTB Brewer's Notice. Tenant shall maintain a Brewer's Notice under 27 CFR Part 25 covering the Brewery Operations. Bonds (where applicable based on tax liability) shall be maintained. TTB Operations Reports (Form 5130.9 or successor) and federal excise tax payments shall be timely filed.

U.2 TTB Distilled Spirits Plant Permit. Tenant shall maintain a Basic Permit and DSP qualification under 27 CFR Part 19, including the Federal Operating Bond and any Withdrawal Bond required. The Bonded Premises shall be physically marked and secured per Section 5.6. Tenant shall comply with 27 CFR Part 19 recordkeeping (gauging, dump, yield, loss, in-bond and tax-paid status), reporting, and excise-tax payment obligations.

U.3 DABS Licenses. Tenant shall maintain (a) a Utah manufacturing license appropriate to its products (brewer/distillery/distillery-tasting room as applicable); (b) the Tasting Room license appropriate to the products served (with required food-service compliance); (c) any required event or catering permits; and (d) any required server-training program enrollment.

U.4 Tasting Room Operating Hours.

Day	Hours
Monday	Closed permitted
Tuesday – Thursday	3:00 p.m. – 10:00 p.m. (indoor); patio per Section 5.4
Friday	3:00 p.m. – 11:00 p.m. (indoor); patio per Section 5.4
Saturday	12:00 noon – 11:00 p.m.
Sunday	12:00 noon – 9:00 p.m.

U.5 Bonded Premises Boundary. The Bonded Premises (and bonded rickhouse extension) shall be (a) physically marked with TTB-compliant signage at access points; (b) secured with locks and key/badge controls limited to authorized distillery personnel; (c) operated under written procedures consistent with 27 CFR Part 19; (d) inventoried in compliance with TTB requirements; and (e) modified only with TTB notice/amendment as required. Landlord access shall be by appointment with Tenant's distiller on duty.

U.6 Required Reports to Landlord. Within thirty (30) days after each anniversary of the Commencement Date (subject to confidentiality), Tenant shall deliver (a) confirmation that TTB Brewer's Notice and DSP Permit are in good standing; (b) confirmation that material DABS licenses are in good standing; (c) summary of any TTB or DABS violations or formal findings (excluding proprietary product or revenue data); and (d) summary of server-training compliance.

U.7 Tied-House Coordination. The parties shall conduct themselves at all times to comply with federal and Utah tied-house prohibitions per Section 25.10. Landlord shall not provide alcohol-business equipment, signage, services, or financial benefits to Tenant beyond the express benefits in this Lease (which are real-estate occupancy benefits typical of similar premises).

EXHIBIT V

Limited Personal Guaranty

1. **Guaranty.** For value received, Bjorn O. Sandstrom ("Guarantor") absolutely and unconditionally guarantees the payment and performance of Tenant's obligations under the Lease, subject to the cap and burn-off in Sections 2 and 3 below.

2. **Cap.** Guarantor's liability is capped at, in the aggregate, twelve (12) months of Base Rent plus Additional Rent measured at the time of Default (a "rolling 12-month cap"), plus reasonable attorneys' fees and costs of collection. Damages for environmental obligations, holdover, and indemnity claims arising from Tenant's willful misconduct or TTB/DABS material violations are not subject to the cap.

3. **Burn-Off.** Provided no Event of Default has occurred during the prior twenty-four (24) months and Tenant has timely paid all Rent (including Percentage Rent) when due, this Guaranty shall terminate effective on the forty-eighth (48th) full calendar month following the Rent Commencement Date.

4. **Independent Obligation; Waivers.** This Guaranty is an independent obligation; Guarantor waives diligence, presentment, protest, notice of acceptance, notice of default (other than as specifically required), and the requirement that Landlord proceed first against Tenant. Customary waivers consistent with Utah law are incorporated.

5. **Notice; Financial Statements.** Notices to Guarantor shall be sent to the Tenant Notice Address with a copy to the Guarantor's personal address provided separately at execution. Guarantor shall deliver an annual personal financial statement, subject to confidentiality, on Landlord's request not more than once per year.

6. **Governing Law.** Utah law governs. Venue: Salt Lake County, Utah.

APPENDIX 1

Deal Summary and Drafting Notes

Description.

A ten-year, single-tenant, triple-net production lease (with Percentage Rent on Tasting Room revenue) for the entire 24,500 SF Building at 1240 South West Temple, Salt Lake City. Tenant is a Utah LLC operating an integrated brewery (TTB Brewer's Notice), distillery (TTB DSP permit with bonded rickhouse), and tasting room (Utah DABS-licensed). Deal includes five months of free Base Rent (build-out, TTB qualification, DABS licensing), 3% annual escalations, a $40/SF TI allowance, a stepped-down LC of $262,500 conditioned on no default and TTB/DABS standing, and a limited personal guaranty (rolling 12-month cap) that burns off at month 48.

Archetype.

Single-tenant production lease — dual-jurisdiction federal (TTB) and state (DABS) alcohol regulatory regime, with restaurant/tasting-room overlays (continuous operation expectations through Permitted Use, hood/grease lighter than a full restaurant), industrial operating realities (sewer pretreatment, boiler, air-quality), and explicit tied-house compliance management for the Percentage Rent and operating provisions.

Key Drafting Notes.

- Percentage Rent at 5% over a natural breakpoint applies only to Tasting Room sales; wholesale and distribution revenue are excluded so as not to implicate tied-house concerns.
- Tied-House Section (25.10) is intentional and important. Lease structure is consistent with commercial real estate market practice for tasting-room production tenants and is not intended to confer a prohibited "interest" in Tenant's licenses.
- TTB Bonded Premises boundary (Section 5.6, Exhibit U) is operationally and legally critical; Landlord access protocols respect TTB dual-custody and access-log requirements.
- Sewer pretreatment is the most often-overlooked operational issue for brewery/distillery leases; Section 4.2 addresses it head-on and assigns responsibility to Tenant.
- Air-quality permitting (still operations, grain dust) is allocated to Tenant.
- Class 1 Div 1 / NEC 500 electrical for the distillery is called out in the Work Letter to align permit, build-out, and insurance.
- LC ($262,500 ≈ ~8 months initial Base Rent) plus Personal Guaranty (rolling 12 months, burning off at month 48) is market-typical for an early-life brewery/distillery deal.
- Item Intentionally Omitted from the Beehive form: corporate guaranty (the founder-guaranty is what bridges the credit risk), relocation right, ROFO/ROFR, expansion option, landlord lien waiver for equipment financing (handled at request via separate UCC waiver), LEED/sustainability addendum, shopping-center co-tenancy or exclusive use (single-tenant building).

Post-Execution Calendar.

Date	Action
Mar 5, 2026	Lease executed; first payments, LC, Guaranty, COIs due within 5 business

	days.
Mar 9, 2026	Early access for Tenant Build-Out begins.
Apr 1, 2026	Commencement Date; Abatement Period begins; TTB Brewer's Notice and DSP applications progressing; DABS applications progressing.
May 15, 2026	Outside Date for Landlord delivery.
Sep 1, 2026	Rent Commencement Date; first $30,625.00 Base Rent installment due.
Pre-launch	Pretreatment permit obtained; air permit obtained (if triggered); boiler permit issued.
Pre-launch	TTB Brewer's Notice and DSP Permit issued; DABS licenses issued; Tasting Room opens.
Apr 30, 2027	Latest delivery of 2026 NNN reconciliation.
Mar 31, 2027	Latest delivery of Lease Year 1 Percentage Rent reconciliation (within 90 days after Lease Year end; first full LY ends Mar 31, 2027).
Sep 1, 2028	LC burn-down step #1 (to $175,000), conditioned on Section 2.7.
Sep 1, 2031	LC burn-down step #2 (to $87,500).
Sep 1, 2030	Personal Guaranty burn-off at month 48 if no Default in prior 24 months.
Dec 31, 2034 – Mar 31, 2035	Renewal option window (12–15 months prior to Expiration).
Oct 3, 2035	Alcohol Production Decommissioning and Closure Plan due (180 days before Expiration).
Mar 31, 2036	Expiration Date; surrender per Exhibit B.